MINE VACUUMING SERVICES (PVT) LIMITED

Versus

TINKER MINING (PVT) LIMITED

And

THE MINISTER OF MINES & MINING DEVELOPMENT

And

THE PROVINCIAL MINING DIRECTOR

MATABELELAND SOUTH (GWANDA)

And

MASHIRI-DUBE SYNDICATE

And

LOVEMORE TAVACHERA

And

MASI SYNDICATE

And

THE SHERIFF OF THE HIGH COURT OF ZIMBABWE

IN THE HIGH COURT OF ZIMBABWE

NDLOVU J

BULAWAYO 28 JULY & 01 AUGUST 2026

Urgent Chamber Application

Mr T Danana with Mr S Chamunorwa, for the applicant.

Mr T. E Gumbo, for the 1st respondent

Mr S Jukwa for the 2nd and 3rd respondents

No appearance for the 4th, 5th, 6th and 7th respondents

NDLOVU J: This is an Urgent Chamber Application for a Spoliation Order in terms of Rule 60(1) of the High Court Rules 2021. The 2nd to the 7th respondents did not file any opposition to this application. The 1st respondent, Tinker Mining (Pvt) Ltd, a company duly incorporated in terms of the laws of Zimbabwe, is the only active respondent in this application.

BACKGROUND

[1] The 1st Respondent was granted a declaratory order by this Court sitting in Harare under case number *HCH 176/25,* on the 19" of February 2025. This order declared the 1st Respondent the sole and lawful holder of rights in terms of the lease agreement known as Mining Lease 29 between the 1st Respondent and the 2nd Respondent. Consequently, the court order also gave the 1st Respondent the right to evict anyone in occupation of the mining area in question through the 7th Respondent (the Sheriff).

[2] The applicant was not a party to the proceedings in *HCH 176/25*, and neither was it an interested party in the mine. On May 16, 2025, the Applicant was issued Mining Certificates by the 2nd respondent through the 3rd respondent, the superintendents of mining matters in this country. Since then, the Applicant has been in peaceful occupation of the mining blocks known as Blackbird and has been actively conducting mining operations, until its partial eviction from the mine by the 7th Respondent on the instructions of the 1st Respondent.

[3] The Applicant reacted by filing an application for a stay of execution under Case No. *HCBC 1030/26,* on 8 July 2026 and a declaratory order. The application was removed from the roll pending the Applicant serving the respondents with the application. Despite being served with the

application, the 1st Respondent, through the 7th Respondent, executed the order under *HCH 176/25*. They did so by removing the Applicant from a section of the mine and relocating them to a more distant point, away from the mining plant and its other property.

[4] This conduct prompted the current application, in which the applicant seeks an order reinstating it into the entire mining location. Additionally, the applicant seeks to restrain the first and second respondents from executing the order issued under case number *HCH I176/25*, pending the final determination of the matter under case number *HCBC 1030/26.*

PRELIMINARY POINTS.

Both the Applicant and 1st Respondent took points *in limine.*

APPLICANT'S POINT IN LIMINE.

Defective Resolution.

[5] The Applicant argued that the 1st Respondent has pleaded an invalid company resolution in that the Director who signed the authorisation is the one who deposed to the affidavit as well, judging from the similarities between the signatures viewed by the naked eye. The deponent of the opposing affidavit himself cannot authorise himself to represent the company. The applicant argues that the notice of opposition is, as a result, invalid and should be struck off the record, and the matter treated as unopposed. MAKONESE J in *Wild Goose Safari (PVT) LTD v Simpho Mpofu and Otrs HB169/18* stated that:

> "It is highly irregular for the deponent to the founding affidavit to act on behalf of the company, such authority deriving from a resolution signed by the same person. The resolution is clearly defective and of no force or effect."

[6]. Mr Gumbo for the 1st Respondent did not argue otherwise. He is taken to have conceded the point, and rightly so. All he said was that he would upload an appropriate resolution on his return to his office. He sought no leave of the court to do so; neither did he undertake to do so before the Applicant argued the point. By extension, this means that the resolution Mr Gumbo uploaded on 31 July 2026, long after the hearing, is a nullity and of no force at all.

[7] The point taken by the Applicant has merit. It is incorrect for one to self-authorise or self-certify. The Court finds the resolution filed by the 1st Respondent defective and of no force at all. Therefore, I uphold the point *in limine*.

For the completeness of the record, I now turn to consider and decide the preliminary points taken by the 1st Respondent as well, in turn.

RESPONDENT'S POINTS IN LIMINE.

- ***i. Urgency***
- ***ii. Execution effected.***
- ***iii. Cause of action***
- ***iv. Incompetent relief***

A. Urgency.

[7] Applications for spoliation orders are by their very nature urgent. Upon reading the application, I formulated the opinion that the matter was urgent. The court has already heard the matter on the urgent roll. I am of the firm view that this matter is urgent, if one considers its facts. Indeed, the Applicant has stuttered once or twice on choosing the angle of litigation and sticking to it, but that did not have the effect of making the matter less urgent. This point lacks merit and is dismissed

B. The Eviction.

[8] The 1st Respondent argued that the ejectment process has been carried out to finality. However, the applicant has said that the 7th Respondent ejected it partially from the property and they are seeking the order to prevent further ejectment by the 7th Respondent. The complainant is the Applicant. I find no reason why it will lie about the execution. In any case, their explanation that they have been removed from the productive portion of the mine is probable. Even if they are totally evicted, the legality of that eviction is still debatable. This point *in limine* taken has no merit as the 7th Respondent has not carried the ejectment to finality; therefore, this point is dismissed.

C. Cause of action.

[9] The respondents argued that the applicants had no cause of action because the 1st Respondent is the sole and exclusive holder of real rights within the mining lease 29 and hence cannot be lawfully impeded or interdicted from enforcing its rights. This preliminary point relates to the

merits of the case as well. It is common cause that the 1st Respondent, in early 2025, obtained the order it is using to defend this application. It is common cause too that the Applicant is on the property on the strength of the authority of the functionaries of the relevant Ministry. The Applicant is a holder of a mining certificate and has invested in the mine. The fidelity of those certificates has not been questioned. Coming from Government Offices, the certificates are presumed to be valid. The jury is still out in respect of who is lawful occupant of the property, and, and as long as the situation remains in that state, it cannot be said that the Applicant has no cause of action to litigate this dispute. This point lacks merit and is dismissed**.**

D. Incompetent relief sought **.**

The 1st Respondent strongly argued that the Applicant is seeking to disregard an extant the court order in *HCH 176/25* and reverse consequential relief sought, granted and executed therefrom. The 1st respondent further argued that in the circumstances of the matter, the Applicant cannot have temporary relief pending the outcome of *HCBC 1030/26.* As will more fully appear hereunder, the Applicant is not a subject of the order in *HCH 176/25.* In the circumstances of the totality of the evidence, the Applicant cannot be said to be seeking incompetent relief. This point is devoid of merit and is accordingly dismissed.

[11] Having upheld the point *in limine* taken by the Applicant and dismissed all the points *in limine* taken by the 1st Respondent, the 1st Respondent's opposition is hereby struck off the record. The Applicant's prayer that the matter proceed as unopposed is in order and is accordingly granted.

THE LAW.

[12] That the application is not opposed on a technicality is not a passport for the Applicant to get the relief it seeks without the application being found to be meeting the requirements of the relief it is seeking.

[13] It is trite that a declaratory order is not executable, because it does not order any action. All it does is to clarify rights and duties. What is executable is the consequential relief to the declaratory order because it is a directive mandate. It admits to no argument that the consequential relief is executable against identified persons. It is an order *in personam.* It is not executable

against the whole world. This is the order this court granted in favour of the 1st Respondent in *HCHC 176/25*.

[14] The Applicant was not a party in *HCHC 176/25* and was not interested in the mine in question at the time. It was part of the whole world. It was not bound by *HCHC 176/25*. There can therefore be no execution against the Applicant on the authority of the consequential relief in *HCHC 176/25*. On the strength of the Mining Certificates issued to the Applicant in May 2025, the Applicant was in peaceful and undisturbed occupation of the mine.

[15] The requirements for the relief of a spoliation order are well settled in our law:

(a) the applicant must have been in peaceful and undisturbed possession of the property in question.

(b) the respondents despoiled them of possession unlawfully without following due process.

[16] In spoliation proceedings, the applicant is required to prove possession and that there was a forcible or wrongful interference with that possession of the thing. REYNOLDS J in *Chesveto v Minister of Local Government and Town Planning 1984 (1) ZLR 240* (H), stated that:

> "Lawfulness of possession does not enter into it. The purpose of the *mandament van spolie* is to preserve law and order and to discourage persons from taking the law into their own hands. To give effect to these objectives, the status quo ante must be restored until such time that a competent court of law assesses the relative merits of the claims of each party."

The Applicant has established a proper basis for the relief sought,

APPLICATION.

[17] In this matter, the 1st Respondent and 7th Respondent, in knowledge of the matter before the courts, which is HCBC 1030/26, decided to execute another judgment of the court. This execution impacts the matter before the court, which is HCBC1030/26. It was improper for the 1st and 7th Respondents to seek and execute an eviction of the applicant from the mine while aware of the matter before the court.

MATHONSI J in *Takudzwa Romeo Chihota v Givemore Munyawariwa and 14 Otrs* HB 418-14 stated that:

> "Where a claim is made by a third party, execution must be stayed to allow for an investigation into the claim… it is extremely uncanny for the Sheriff to proceed *mero motu* to remove goods that are being claimed without even seeking an input from the judgment creditor and without the specific directions of the registrar. Practically, it unnecessarily increases execution costs even when it may well be that the claim for the goods is well grounded"

[18] In my view, the 1st Respondent and the 7th Respondent in this matter are in the wrong for purporting to execute an order that cannot be enforced against the Applicant, as it was not cited in *HCBC176/25,* and, in any case, while on the face of it there is a case that affects parties that is still pending before this court.

DISPOSITION

[19] I find that the applicants' claim in this matter is justified. The Applicant has established a proper basis for the relief sought as necessarily varied. It was in peaceful and undisturbed occupation of the mine when it was unlawfully despoiled by the 1st Respondent through the hand of the 7th Respondent. Its rights were abruptly and without cause interfered with by the 1st Respondent and 7th Respondent. The Applicant has proven the requirements of a spoliation order. I accordingly order as follows, as a spoliation order cannot be in interim terms.

ORDER

1. *The 1st and 7threspondents are hereby ordered to reinstate the Applicant onto the mining claim known as black bird and registered in its name.*
2. *The 1st and 7th Respondents are hereby interdicted from purporting to execute against the Applicant the order and writ issued under case no HCH 176/25*
3. *Each party shall bear its own costs.*

NDLOVU J.

Messrs. Danana, Mharapara Attorneys, applicant's legal practitioners

Messrs. Chinawa Attorneys, first respondent's legal practitioners